

বাংলাদেশ সুপ্রীমকোর্ট

হাইকোর্ট বিভাগ

আপীল সম্পর্কিত

ফৌজদারী

জেলা: Sirajgonj

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন

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Md. Shohidul Islam

আবেদনকারী

মাধ্যম

Mr. Md. Sultan Mahmud, Advocate

বনাম

The State

Ms. Shiuli Khanom, D.A.G along with

Mr. S.M. Emamul Musfiqu, A.A.G

Mr. Md. Humayun Karim Siddique, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডাদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

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কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	10.11.2024	In preferring the Criminal Revision under section 439 read with section 31 of the Code of Criminal Procedure there had been a delay of 60 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 60 days in filing the revision is hereby condoned. Let records be called for and realization of fine be stayed. Let a rule be issued calling upon the opposite parties to show cause as to why the judgment and order dated 09.07.2024 passed by the learned Additional Sessions Judge, 2nd Court, Sirajgonj in Criminal Appeal No. 32 of 2021 dismissing the appeal and thereby affirming the judgment and order of conviction and sentence dated 18.01.2021 passed by the learned Additional Chief Judicial Magistrate, Sirajgonj in G.R. Case No. 51 of 2015 (Raygonj) arising out of Raygonj Police Station Case No. 08 dated 17.05.2015 convicting the convict petitioner under section 325 of the Penal Code, 1860 but modifying the sentence of imprisonment by reducing it to 02 (two) years and also to pay a fine of Tk. 5,000/- in default to suffer simple imprisonment for 02 (two) months instanced of 04 (four) years rigorous imprisonment along with to pay a fine of Tk. 5000/- (five thousand) in default to suffer rigorous imprisonment for 02 (two) months more should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশের ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict petitioner Md. Shohidul Islam, son of Md. Ajmot Ali Sheikh be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Additional Chief Judicial Magistrate, Sirajgonj. The rule is made returnable within 4 (four) weeks from date. The petitioner shall put in 2 (two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in vide HCD Rules, Chapter IV Rule 3(6).
		Kashem/B.o

দ্রষ্টব্যঃ কালা কালিত অফিস নোটের একটি ক্রমিক নম্বর এবং লাল কালিত কোর্টের আদশর আরকটি ক্রমিক নম্বর হইব।
নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩